LLOYD MACHACHA
versus
HEALTH SERVICE COMMISSION
and
VINCENT HUNGWE N.O
and
RUGARE ABGAIL KANGWENDE N.O
and
GERALD GWINJI N. O
and
EDWARD MAKONDO N.O
and
ANGELBERT MBENGWA N.O
and
MERCY SIBONGILE GWAUNZA N.O
and
JOSEPHINE MWAKUTUYA N.O
and
CHRISTOPHER PASI N.O

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 16 & 22 October 2025

Opposed Application

Applicant in person
P Chibanda, for the respondents

[1] MAMBARA J: The applicant, Lloyd Machacha, instituted the present application against the Health Service Commission and others (the respondents). He seeks to enforce or give effect to a judgment of the Labour Court issued in his favour. The genesis of the matter is an employment dispute. The applicant was dismissed from his employment, and he challenged that dismissal through the labour law framework. This culminated in a judgment of the Labour Court Harare, reference LC/H/1064/23, which forms the backdrop of the current proceedings. At the hearing of this application, the respondents raised a point in limine objecting to this Court's jurisdiction, arguing that the matter is improperly before the High Court. After hearing submissions from both sides, I upheld the point in limine on jurisdiction. The reasons for that decision are set out below.

[2] The relevant facts are largely common cause. The applicant was employed within the public health sector and was dismissed from his position the details of which are not in dispute for present purposes. Aggrieved by the termination of his employment, he pursued the remedies available under the Labour Act [*Chapter 28:01*]. The dispute went through the labour relations processes, and ultimately, on 21 May 2025, the Labour Court handed down judgment number LC/H/1064/23 in the applicant's favour. In that Labour Court judgment, the applicant's dismissal was found to be unlawful. The Labour Court ordered the respondents to reinstate the applicant to his former position with full benefits and without loss of salary. The judgment further provided that should reinstatement no longer be possible or practicable, the respondents were to pay the applicant damages in lieu of reinstatement (compensatory damages to place him in the position he would have been had the dismissal not occurred). This Labour Court order was not appealed and thus became final.

[3] Following the Labour Court outcome, the applicant contends that the respondents did not comply with the order – they neither took him back into service nor paid any damages. Instead of pursuing the enforcement mechanisms provided under the Labour Court's judgment and the Labour Act, the applicant approached this Court by way of application. In essence, he seeks an order from the High Court compelling the respondents to honour the Labour Court judgment. The relief sought is effectively to enforce the reinstatement ordered by the Labour Court or to obtain an equivalent remedy through this Court. The respondents oppose the application. Their primary contention raised as a preliminary point is that this Court lacks jurisdiction to entertain what is, at its core, a labour matter. They argue that the applicant should have enforced the Labour Court judgment through the procedures laid out in the Labour Act, rather than instituting fresh proceedings in the High Court.

[4] At the commencement of the hearing, counsel for the respondents raised a point in limine objecting to the High Court's jurisdiction. The argument was that the matter is improperly before this Court because it arises from an employer-employee dispute and there exists a binding Labour Court judgment on the issue. It was submitted that the appropriate course for the applicant was to invoke the enforcement procedures of the Labour Court judgment, rather than to seek a duplicative order from the High Court. On behalf of the applicant, it was argued that because the respondents have not complied with the Labour Court order, the applicant was entitled to approach the High Court for relief. However,

after considering the submissions and the law, I found merit in the respondents' contention. I ruled that this Court does not have or should not exercise jurisdiction in the present matter. The point in limine was accordingly upheld, effectively disposing of the application. I now highlight the rationale for this conclusion.

[5] Labour Court Judgment and Enforcement Mechanisms: The Labour Court's judgment LC/H/1064/23 already provided the applicant with a remedy – reinstatement or alternatively damages in lieu of reinstatement. Critically, the applicant has not exhausted the remedies and enforcement mechanisms available under that judgment. The Labour Act establishes specific procedures for enforcing Labour Court orders. In particular, section 92B (3) of the Act permits a party in whose favour a Labour Court decision was made to register that decision with a competent civil court for enforcement. In other words, the applicant had the option to submit the Labour Court's judgment for registration either in the Magistrates' Court or this High Court depending on the quantifiable amount involved, thereby giving that judgment the same force and effect as a civil judgment of this Court. Once so registered, the order could be enforced by the usual processes such as execution against the employer's assets without the need for initiating a new substantive application.

[6] The scheme of the Act thus places the onus of enforcement of a labour award on the labour dispute resolution system itself. The applicant could also have returned to the Labour Court to seek assistance – for example, applying for a quantification of damages in lieu of reinstatement if the parties could not agree on the amount or invoking contempt proceedings for non-compliance. These avenues were available and tailored for enforcing the Labour Court's decision. However, the applicant did not utilize these mechanisms. There is no indication that he attempted to register the judgment or to have the damages assessed through the Labour Court processes. Instead, he bypassed those steps and filed this application in the High Court.

[7] It is trite that the Labour Court is a specialist court created by statute to deal with labour and employment disputes. The Constitution in section 171 endows the High Court with inherent jurisdiction over all civil and criminal matters, but that broad power is not without limits or discretion when a specialized forum exists. The Labour Act particularly section 89 of [*Chapter 28:01*] entrusts the Labour Court with exclusive jurisdiction in the first instance over matters such as unfair dismissals and other labour disputes. Our courts have long held that where a cause of action arises from an employment relationship, the

proper forum is the Labour Court, and parties must follow the route laid down in the Labour Act. In the landmark case *Agricultural Bank of Zimbabwe Ltd t/a Agribank* v *Machingaifa & Another* (SC 61-04), the Supreme Court underscored the point that the High Court should not entertain labour disputes that the Labour Act has directed to be resolved in the specialised labour tribunal. Similarly, in *Nyahora* v *CFI Holdings (Pvt) Ltd* SC 81-14, it was affirmed that the Labour Court is the forum of first instance for employment grievances, even though the High Court retains broad authority under the Constitution.

[8] The High Court is generally loathe to interfere in labour matters or to encroach upon the domain of the Labour Court. Even though this Court has inherent jurisdiction, it will not willy-nilly usurp the powers of specialized courts established for specific categories of case. The doctrine of exhaustion of domestic remedies applies with full force in this context. A litigant is expected to exhaust the remedies available in the labour law framework before resorting to the High Court. Only in exceptional circumstances – for example, where the specialized forum cannot grant effective relief or where irreparable harm would occur without urgent High Court intervention – might this Court step in. In the present case, no such exceptional circumstances were demonstrated. On the contrary, the applicant had a clear pathway to enforce his rights under the Labour Court judgment, but he chose not to follow it. To countenance his direct approach to the High Court would undermine the legislative scheme for labour disputes and render the Labour Court redundant in practice. As was aptly observed in *Kabichi* v *MMCZ* (HH 38-18), a party cannot simply bypass a court "specifically created to address his problem and bring it to the High Court", as this would *"nullify the intention of the legislature that labour matters should be dealt with, in the first instance, by the Labour Court"*. Those remarks resonate squarely with the facts at hand.

[9] In light of the foregoing, I conclude that this Court lacks jurisdiction to entertain the applicant's claim at this stage. Put differently, it would be an improper exercise of the High Court's jurisdiction to intervene in order to enforce a Labour Court judgment when the applicant has not utilized the direct enforcement avenues provided under that very judgment and the Labour Act. The point in limine is thus upheld. The High Court cannot usurp the functions of the Labour Court in this manner, and it is not the proper procedure to approach this Court as a means of enforcing a Labour Court order. The applicant must pursue the remedies within the labour law framework to secure compliance with the

judgment LC/H/1064/23. If and when those remedies are exhausted or prove inadequate, only then might a further approach to this Court be considered – but that is not the case here.

[10] Disposition

Having upheld the jurisdictional objection, the matter cannot proceed on the merits. The appropriate order is one of dismissal.

Accordingly, the application is dismissed with costs on the ordinary scale.

MAMBARA J: ……

Civil Division, respondents' legal practitioners